

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405844	ZAVALA-RIOS VS RODRIGUEZ	MOTION TO BE RELIEVED AS COUNSEL FOR RICARDO RODRIGUEZ

Tentative Ruling: Defendants' counsel's Motion to be Relieved is granted.

Order to Show Cause is set for 9/14/26 as to why Answers Should not be Stricken for Failure to Retain Counsel as to Defendants AMERIPRIDE SERVICES, LLC AN AFFILIATE OF VESTIS SERVICES, LLC and ARAMARK SERVICES, INC.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502515	SOLIS VS KENNON	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: Defendant Interstate Automobile Network, Inc.'s Motion to Set Aside the Clerk's Entry of Default is granted. Defendant must file a separate verified answer within 20 days of this ruling.

The Cross-Complaint is NOT deemed served nunc pro tunc. Defendant is ordered to serve the Cross-Complaint on Plaintiff Solis by legally authorized personal or mail service. Plaintiff Solis's time to respond to the Cross-Complaint shall run strictly from the date of proper service (C.C.P. Section 473(b)).

Counsel William P. Gemmill, Esq. is ordered to pay Plaintiff Solis reasonable compensatory costs associated with opposing this motion in the amount of \$250.00 within thirty (30) days of this Order. CCP §473(c).

CCP §473(b) provides that the court may relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect within six months after judgment, dismissal, order, or proceedings has been taken. In the absence of an attorney affidavit of fault, the burden is on the moving party to show that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.

C.C.P. section 473(b) also provides discretionary relief, stating: "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." In ruling on motions brought under the discretionary provision of section 473(b), the general policy favors granting relief and a trial on the merits. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.) When relief is sought promptly and there is no prejudice to the other side, even a weak showing will suffice. (*Ibid.*)

The term "excusable neglect" is interpreted liberally. (*Iott v. Franklin* (1988) 206 Cal.App.3d 521.) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief